

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DELBERT CASTILLO,

Plaintiff,

-against-

COUNTY OF KINGS, KINGS COUNTY POLICE
DEPARTMENT, DETECTIVE AMY R. SANCHEZ,
Shield # 5401; POLICE OFFICER RUI MARTINS,
Shield # 2264; POLICE OFFICER AMY SANCHEZ,
Shield # 11602; and JOHN DOES-Police Officers as yet
unidentified; KINGS COUNTY 78TH PRECINCT, and
PERSONS EMPLOYED BY THE COUNTY OF KINGS,
NEW YORK,

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
April 16, 2020



Yelena Kozlova, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
DELBERT CASTILLO
26 Broadway, 27th Floor
New York, New York 10004

Index No. _____
Date Purchased: _____

SUMMONS

Plaintiff designates
KINGS County
as the place of trial.

The basis of venue is
Location of accident.

To: THE CITY OF NEW YORK- 100 Church Street, New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT- 1 Police Plaza, New York, NY 10038

DETECTIVE AMY R. SANCHEZ, Shield #5401, NYPD KINGS COUNTY 78TH
PRECINCT 65 6th AVENUE, BROOKLYN, NY 11217

POLICE OFFICER RUI MARTINS, Shield #2264, NYPD KINGS COUNTY 78TH
PRECINCT 65 6th AVENUE, BROOKLYN, NY 11217

POLICE OFFICER AMY SANCHEZ, Shield #11602, NYPD KINGS COUNTY 78TH
PRECINCT 65 6th AVENUE, BROOKLYN, NY 11217

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----x
DELBERT CASTILLO,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

COUNTY OF KINGS, KINGS COUNTY POLICE
DEPARTMENT, DETECTIVE AMY R. SANCHEZ,
Shield # 5401; POLICE OFFICER RUI MARTINS,
Shield # 2264; POLICE OFFICER AMY
SANCHEZ, Shield # 11602; and JOHN DOES-
Police Officers as yet unidentified; KINGS
COUNTY 78TH PRECINCT, and PERSONS
EMPLOYED BY THE COUNTY OF KINGS, NEW
YORK,

Defendants.

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INTRODUCTION

Plaintiff, DELBERT CASTILLO, by attorney, Lebedin Kofman LLP, complaining
of the Defendants, respectfully alleges as follows:

1. This action is being commenced within three years of the dates of which all claims accrued.
2. The statute of limitations was tolled by the executive order 202.14 of Gov. Cuomo issued on April 7, 2020, tolling all statutes of limitations up and until June 6, 2020 and the filing was suspended until May 25, 2020 by Hon. Marks.
3. Plaintiff have complied with all conditions precedent to maintain this action.
4. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

PARTIES

5. Plaintiff DELBERT CASTILLO is a natural person and United States Citizen residing in the County of Kings and State of New York during all relevant times of this action and is currently residing in the County of Kings and State of New York.

6. At all relevant times, Defendant KINGS COUNTY (hereinafter, "KC") was and is a municipal corporation incorporated and existing under the laws of the State of New York. Defendant KC is responsible for the policies, procedures, and practices implemented through its various agencies, agents, departments, and employees, and for injury occasioned thereby.

7. Defendant KC operates Kings County Police Department (hereinafter, "KCPD"), and as such is the public employer of Defendant Officers herein.

8. Defendant DETECTIVE AMY R. SANCHEZ, Shield # 5401 (hereinafter, "Det. Sanchez") was a KCPD detective, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant KC and within the scope of her employment. Det. Sanchez is sued in her official and individual capacity.

9. Defendant POLICE OFFICER RUI MARTINS, Shield # 2264 (hereinafter, "P.O. Martins") was a KCPD officer, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant KC and within the scope of his employment. P.O. Martins is sued in his official and individual capacity.

10. Defendant POLICE OFFICER AMY SANCHEZ, Shield # 11602 (hereinafter, "P.O. Sanchez") was a KCPD officer, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant KC and within the scope of her employment. P.O. Sanchez is sued in her official and individual capacity.

11. Defendant JOHN DOES-Police Officers as yet unknown (hereinafter, "JOHN DOES-Police Officers as yet unidentified") were KCPD officers, and at all times relevant hereto, acted in that capacity as agents, servants and/or employees of Defendant KC and within the scope of their employment. JOHN DOES-Police Officers as yet unidentified are sued in their official and individual capacity.

12. At all relevant times of this complaint Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant KC was responsible for making and enforcing the policies of KCPD and was acting under the color of law, to wit under the color of the statutes, ordinances, regulations, policies, customs and usages of KC.

FACTS

13. The facts alleged in this complaint are based upon the personal observations of Plaintiff regarding events that took place in his presence, and upon information and belief, the sources thereof are documents prepared in connection with the arrest of Plaintiff and public documents and information relating thereto which are presently available to Plaintiff. The aforesaid documentary evidence is presently incomplete, as it does not include numerous documents and exhibits; therefore, the complaint has been prepared without the benefit of full discovery.

THE INCIDENT OF APRIL 17, 2017

14. On or about April 17, 2017, Plaintiff was lawfully on the premises known as 906 Newkirk Avenue, Brooklyn, New York. (hereinafter, "the premises"). Plaintiff was invited to the

premises by his friend, Joscelyn Evering (hereinafter "Ms. Evering") and Plaintiff chose to spend the night at the premises with Ms. Evering's permission.

15. On or about April 17, 2017, KCPD officers, including Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified entered the premises and falsely, maliciously, improperly and inaccurately arrested everyone at the premises, including Plaintiff.

16. While placing Plaintiff into handcuffs, one of the Defendants improperly and maliciously hit Plaintiff on the back of the head with the gun, pushed Plaintiff down on the floor smashing his chin into the floor, and hit Plaintiff on his back. At no time during the incident did Plaintiff resist or refuse to cooperate with the Defendants.

17. At the time of the arrest, Ms. Evering stated to Defendant P.O. Sanchez that there are drugs in the house and that they all belong to her.

18. Despite Ms. Evering's statement, Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified, falsely, maliciously, improperly and inaccurately asserted that Plaintiff was in possession of illegal substance causing Plaintiff to be charged with a felony under New York State Penal Law 220.16(1) and a misdemeanor under New York State Penal Law 220.03.

19. As a result of Defendants' actions, Plaintiff was unlawfully detained for approximately 12 (twelve) days.

20. On April 21, 2017, the criminal charges against Plaintiff were dismissed, because the grand jury declined to indict.

21. On May 19, 2017, the criminal charges against Plaintiff were formally dismissed and sealed by the Court.

22. At all times relevant to this action, Defendants acted intentionally, willfully, knowingly, negligently, and with reckless disregard for, and deliberate indifference to the rights of Plaintiff.

23. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of the failure of Defendant KC to properly hire, train, supervise, monitor, and discipline its officers, agents, employees and / or contractors.

24. The acts of Defendants prior to and during the course of the Arrest of Plaintiff were the direct result of policies, practices, and customs developed, implemented, enforced, encouraged, sanctioned, or tolerated by Defendant KC.

25. Defendant's actions took place while working in their capacity as KCPD Police Officers in care of employment during their duties.

26. As a result of the aforesaid acts or omissions of Defendants, Plaintiff sustained personal, physical and emotional injuries and losses including, pain and suffering, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, trauma, shock, fear, humiliation, embarrassment, shame, indignity, damage to his reputation, professional and economic losses, and financial costs and expenses.

27. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts that may otherwise have jurisdiction.

CAUSES OF ACTION

**AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS
VIOLATION OF PLAINTIFF'S STATUTORY AND CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. § 1983 (FALSE ARREST)**

28. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs "1" through "27" above with the same force and effect as if herein set forth.

29. At all times relevant herein the conduct of the Defendants were subject to 42 U.S.C. §'s 1983, 1985, 1986, and 1988.

30. The detention and arrest of Plaintiff without probable cause and without a lawful warrant was an abuse of power which constituted a seizure within the meaning of the Fourth Amendment of the United States Constitution and was an act taken Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified, with a deliberate indifference to Plaintiff' rights and privileges. The seizure and deprivation of Plaintiff' liberty was unreasonable and without due process of law, in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

31. Acting under the color of law, Defendants achieved a denial of Plaintiff' rights, privileges or immunities secured by the United States Constitution or by Federal law, to wit:

a. By depriving Plaintiff of their liberty without due process of law, by taking Plaintiff into custody and holding them there against Plaintiff' will.

b. By making an unreasonable search and seizure of Plaintiff' property without due process of law.

c. By conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny Plaintiff equal protection of laws.

d. By refusing or neglecting to prevent such deprivations and denials to Plaintiff thereby depriving Plaintiff of the rights, privileges, and immunities as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

32. Defendant KCPD negligently trained Defendants Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified.

33. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A SECOND CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
VIOLATION OF PLAINTIFF'S STATUTORY AND CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. § 1983 (DETENTION AND CONFINEMENT)

34. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs "1" through "33" above with the same force and effect as if herein set forth.

35. As a result of Defendants' concerted unlawful and malicious detention and confinement of Plaintiff, Defendants deprived Plaintiff of their right to liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded in violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. 1983.

36. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS FOR A THIRD CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
VIOLATION OF PLAINTIFF'S SATUTORY AND CONSTITUTIONAL RIGHTS
UNDER U.S.C. § 1983 (EXCESSIVE FORCE)

37. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs "1" through "36" above with the same force and effect as if herein set forth.

38. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

39. That Defendants had no legal cause or reason to use excessive force in effectuating Plaintiff's arrest.

40. That Defendants violated Plaintiff's Fourth and Fourteenth Amendment right to be free from unreasonable seizure when they used excessive force against him.

41. That at the time of the arrest or while in custody, Plaintiff did not pose a threat to the safety of the arresting officers.

42. That Plaintiff did not actively resist arrest or attempt to evade arrest.

43. The Defendant KC, through its officers, agents, and employees, unlawfully subjected Plaintiff to excessive force while effectuating his arrest.

44. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

45. That by reason of Defendants' acts and omissions, acting under color of law and within the scope of Defendants' authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to excessive force while effectuating his arrest, in violation of Plaintiff's rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

46. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of Plaintiff's civil rights, including but not limited to the right to be free from the application of excessive force.

47. That upon information and belief, in 2017, Defendants and KC had a policy or routine practice of using excessive force when effectuating arrests.

48. That upon information and belief, it was the policy and/or custom of Defendant KC to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

49. That as a result of the above described policies and customs, the officers, staff, agents and employees of Defendant KC, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

50. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant KC to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.

51. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All said injuries may be permanent.

AS FOR A FOURTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
VIOLATION OF PLAINTIFF'S STATUTORY AND CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. § 1983 (DETENTION AND CONFINEMENT)

52. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs "1" through "51" above with the same force and effect as if herein set forth.

53. As a result of Defendants' concerted unlawful and malicious detention and confinement of Plaintiff, Defendants deprived Plaintiff of their right to liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded in

violation of the Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. 1983.

54. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damages to reputation, shame, humiliation, and indignity. All of said injuries may be permanent

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
VIOLATION OF PLAINTIFF'S STATUTORY AND CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. § 1983 (REFUSING OR NEGLECTING TO PREVENT)

55. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs "1" through "54" above with the same force and effect as if herein set forth.

56. At all times relevant to the complaint, Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified as yet unidentified as police officers were acting under the direction and control of Defendants KC and KCPD.

57. Acting under the color of law and pursuant to official policy Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified, Defendant KC and KCPD knowingly, recklessly or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis Defendant's police officers in their duties to refrain from:

a. Unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;

b. Unlawfully and maliciously arresting, imprisoning, and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities;

c. Conspiring to violate the rights, privileges, and immunities guaranteed to Plaintiff by the Constitution and the laws of the United States and the laws of the State of New York;

d. Otherwise depriving Plaintiff of their constitutional and statutory rights, privileges and immunities.

58. Defendants KC and KCPD had knowledge of or had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, should have knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendant KC and KCPD had the power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

59. Defendants KC and the KCPD directly or indirectly under color of law approved or ratified the unlawful deliberate, malicious, reckless, and wanton conduct of Defendant police officers heretofore described.

60. As a direct and proximate cause of the negligent and intentional acts of Defendants KC and the KCPD as set forth in paragraphs 1 to 59 above, Plaintiff suffered physical and psychological injury, loss of income, and severe mental anguish in connection with the deprivations of his constitutional and statutory rights guaranteed by the Fifth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. § 1983.

61. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of the said injuries may be permanent.

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS FOR
VIOLATION OF PLAINTIFF'S STATUTORY AND CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. § 1983 (MALICIOUS PROSECUTION)

62. Plaintiff repeats and re-alleges and incorporates by reference the allegations in paragraphs "1" through "61" above with the same force and effect as if herein set forth.

63. That Defendants with malicious intent, arrested Plaintiff and initiated criminal proceedings despite the knowledge that Plaintiff had committed no crime.

64. That all charges against Plaintiff have been dismissed.

65. That there was no probable cause for the arrests and criminal proceedings. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff' rights, deprived Plaintiff of their liberty when they maliciously prosecuted them and subjected them to unlawful, illegal and excessive detentions, in violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

66. That upon information and belief, Defendants had a policy and/or custom of maliciously prosecuting individuals despite the lack of probable cause. Thus, as a result of the above described policies and customs, Plaintiff were maliciously prosecuted despite the fact that they had committed no violation of the law.

67. That upon information and belief was the policy and/or custom of Defendants KC and KCPD to inadequately hire, train, supervise, discipline and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents, and employees.

68. That as a result of the above described policies and customs, Defendants KC and KCPD, its staff, agents and employees of Defendants KC and KCPD believes that their actions

would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned but would be tolerated.

69. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendants KC and KCPD to the constitutional rights of arrestees and were the cause of the violations of Plaintiff's rights alleged herein.

70. That in so acting, Defendants KC and KCPD abused its power and authority as policymaker of the KCPD under the color of State and/or local law.

71. That upon information and belief, in 2017, Defendants KC and KCPD had a policy or routine practice of alleging facts against persons for the purpose of charging crimes they did not commit.

72. That by reason of the foregoing, Plaintiff suffered physical and psychological injuries, traumatic stress, post-traumatic stress disorder, mental anguish, economic damages including attorney's fees, damage to reputation, shame, humiliation, and indignity. All of said injuries may be permanent.

AS AND FOR A SEVENTH CAUSE OF ACTION
AGAINST DEFENDANTS KC AND KCPS FOR
MUNICIPAL LIABILITY "MONELL" CLAIM

73. The allegations set forth in paragraphs "1" through "72" inclusive are incorporated herein as if fully set forth.

74. Defendants Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified individually and collectively, within the scope of their employment and authority and under color of State Law, engaged in conduct which constituted customs, policies, procedures, rules, or usages of the KC and KCPD and which were in violation of the rights, privileges, and immunities of Plaintiff, a citizen and legal resident of the United States and

resident of the State of New York, as secured by the United States Constitution and the laws of the State of New York.

75. The aforesaid customs, policies, procedures, rules, or usages included but were not limited to: failure to properly investigate before effecting an arrest; utilizing unnecessary excessive force, failure to ensure that use of force by police officers is properly reported and investigated; failure to prevent and intervene foreseeable harm; failure to appropriately discipline police officers who utilize unnecessary and excessive force, as well as those who supervise such officers; failure to implement measures to ensure that officers are appropriately supervised by qualified and well-trained staff; and failure to intervene when employees, officers, agents, and / or contractors violate well-established statutory and constitutional rights.

76. The aforesaid unlawful policies and practices in tolerating such misconduct resulted in the subject Arrest rendering Defendants KC and KCPD liable to Plaintiff pursuant to Monell v. City of New York, 436 U.S. 658 (1978), and under 42 U.S.C. §1983.

77. The aforesaid conduct was consistent with the institutionalized practices of KCPD which were known and previously sanctioned by Defendants KC and KCPD.

78. Despite knowledge of the institutionalized practices of the KCPD, Defendant KC took no effective actions to end or prevent such practices.

79. Defendants KC and KCPD had prior notice of the injurious actions and practices of Defendants Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified but took no effective actions to end or prevent the aforesaid Defendants from committing such practices.

80. Defendants KC and KCPD had prior notice that Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified had inadequate training regarding

the applicable provisions of the Penal Law of the State of New York, and Departmental policy, other applicable laws and federal and state statutory and constitutional protections, but took no effective actions to ensure that he aforesaid Defendants were provided with adequate or appropriate training.

81. Defendants KC and KCPD authorized, tolerated, and ratified the misconduct of employees, officers, agents, and / or contractors, and of Det. Sanchez, P.O. Martins, P.O. Sanchez and JOHN DOES-Police Officers as yet unidentified specifically, by failing to: discipline employees, officers and agents; take adequate precautions in screening, hiring, educating, informing, training, supervising, promoting, and retaining employees, officers, agents; and failing to establish and maintain a meaningful system for responding to complaint of misconduct, all of which constitute deliberate indifference by Defendants KC and KCPD to Plaintiff' rights secured by the United States Constitution, and deliberate indifference to the physical safety and well-being of Plaintiff.

82. As a direct and proximate cause of Defendants' acts and / or omissions, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

83. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants KC and KCPD liable to Plaintiff for punitive damages.

84. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages and for Plaintiff' attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands judgment against Defendants COUNTY OF KINGS, KINGS COUNTY POLICE DEPARTMENT, DETECTIVE AMY R. SANCHEZ, Shield # 5401; POLICE OFFICER RUI MARTINS, Shield # 2264; POLICE OFFICER AMY SANCHEZ, Shield # 11602; and JOHN DOES-Police Officers as yet unidentified; KINGS COUNTY 78TH PRECINCT, and PERSONS EMPLOYED BY THE COUNTY OF KINGS, NEW YORK, jointly and severally, for actual, general, special, compensatory damages in the amount of Ten Million Dollars (\$10,000,000.00) and further demands judgement against each as said Defendants, jointly and severally, for punitive damages in the amount of Ten Million Dollars (\$10,000,000.00), plus cost of the action, including attorney's fees, and such other relief deemed to be just and equitable. Actual, general, special and compensatory damages for Plaintiff.

Dated: New York, New York
April 14, 2020



Yelena Kozlova, Esq.
LEBEDIN KOFMAN, LLP
Attorneys for Plaintiff
DELBERT CASTILLO
26 Broadway, 27th Floor
New York, New York 10004

ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: New York, New York
April 14, 2020



Yelena Kozlova, Esq.